

## **SHADY OAKS COMPREHENSIVE DAMAGES SCHEDULE**

**PIGORS V. SHADY OAKS ET AL. -- CASE NO. 2025-002760-CZ**

**14TH CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN**

**Prepared by:** Andrew J. Pigors, Plaintiff pro se

**Date:** [CURRENT DATE]

**Version:** MEGA-STACK v1.0

**Status:** WORKING DOCUMENT -- Amounts subject to refinement with discovery

### **I. OVERVIEW OF DAMAGES FRAMEWORK**

This damages schedule calculates the full scope of harm inflicted by Defendants' coordinated scheme of ledger fraud, unlawful eviction, property destruction, blocked sales, and the resulting cascade into homelessness and custody destruction. Damages are organized by:

1. **Actual/Direct Damages** -- Quantifiable out-of-pocket losses
2. **Consequential Damages** -- Downstream harms caused by Defendants' conduct
3. **Statutory Damages** -- Multipliers and penalties under Michigan and federal law
4. **Punitive/Exemplary Damages** -- Deterrence for willful misconduct

Per MCL 750.159j (RICO), actual damages are trebled. Per MCL 600.2919a (Conversion), actual property damages are trebled. These multipliers stack where distinct statutory bases apply.

## II. ACTUAL / DIRECT DAMAGES

### A. PROPERTY VALUE LOSS

| Item                                   | Basis                                                   | Low Estimate        | High Estimate       | Evidence                                       |
|----------------------------------------|---------------------------------------------------------|---------------------|---------------------|------------------------------------------------|
| Fair Market Value of Manufactured Home | Comparable sales in Muskegon County MHPs; title records | \$15,000            | \$45,000            | Exhibit P (Title); MLS/comparable data         |
| Structural Damage from Set-Out         | Drilled locks, entry damage, deterioration from vacancy | \$3,000             | \$10,000            | Exhibit D-1, D-2 (photos); inspection needed   |
| Diminished Value (Cloud on Title)      | Slander of title by manager's statements                | \$5,000             | \$15,000            | Exhibit K (manager texts); appraiser testimony |
| <b>**Subtotal Property**</b>           |                                                         | <b>**\$23,000**</b> | <b>**\$70,000**</b> |                                                |

### B. LOST EQUITY FROM BLOCKED SALES

| Sale # | Approx. Date       | Buyer Status                     | Estimated Sale Price | Evidence                      |
|--------|--------------------|----------------------------------|----------------------|-------------------------------|
| Sale 1 | [TBD -- Discovery] | Willing buyer, blocked by park   | \$20,000 - \$35,000  | Exhibit L; buyer testimony    |
| Sale 2 | [TBD -- Discovery] | Willing buyer, blocked by park   | \$20,000 - \$35,000  | Exhibit L; buyer testimony    |
| Sale 3 | [TBD -- Discovery] | Willing buyer, texted by manager | \$20,000 - \$35,000  | Exhibit K, L; buyer testimony |

**Total Lost Equity: \$60,000 - \$105,000**

**Calculation Method:** Fair market value of home at time of each blocked sale, minus any outstanding lot-rent balance (which Plaintiff disputes as fraudulently inflated). The FMV can be established through:

\* Comparable sales of similar manufactured homes in Muskegon County

\* NADA Manufactured Housing Appraisal Guide

\* Buyer's own offer price (if documented)

### C. PERSONAL PROPERTY DESTROYED/CONVERTED IN SET-OUT

| Category                              | Items                                                 | Estimated Value     | Evidence                               |  |
|---------------------------------------|-------------------------------------------------------|---------------------|----------------------------------------|--|
| Major Appliances                      | Refrigerator, stove/oven, washer, dryer, water heater | \$3,000 - \$6,000   | Exhibit D-2; purchase records          |  |
| Furniture                             | Beds, couches, tables, chairs, dressers, shelving     | \$2,000 - \$5,000   | Photos; receipts                       |  |
| Electronics                           | TV, computer(s), gaming systems, peripherals          | \$1,500 - \$4,000   | Purchase records                       |  |
| Clothing                              | All clothing items for Plaintiff and child            | \$1,000 - \$3,000   | Estimate based on replacement          |  |
| Kitchen/Household                     | Dishes, cookware, utensils, linens, towels            | \$500 - \$1,500     | Replacement cost                       |  |
| Personal Documents                    | Birth certificates, tax records, legal docs, photos   | \$500 - \$2,000     | Irreplaceable items; replacement costs |  |
| Tools/Equipment                       | Power tools, hand tools, lawn equipment               | \$500 - \$2,000     | Purchase records                       |  |
| Child's Belongings                    | Toys, books, clothing, school supplies, memorabilia   | \$500 - \$2,000     | Emotional value; replacement cost      |  |
| Miscellaneous                         | Decorations, collectibles, sentimental items          | \$500 - \$2,000     | Irreplaceable; estimated replacement   |  |
| <b>**Subtotal Personal Property**</b> |                                                       | <b>**\$10,000**</b> | <b>**\$27,500**</b>                    |  |

**Note:** Conversion damages under MCL 600.2919a are trebled. See Section IV.B.

### D. REPLACEMENT HOUSING COSTS

| Period                              | Monthly Cost       | Duration             | Total                          |
|-------------------------------------|--------------------|----------------------|--------------------------------|
| July 2025 - Present                 | \$800 - \$1,200/mo | 12+ months (ongoing) | \$9,600 - \$14,400             |
| Car-sleeping period                 | Per diem hardship  | [TBD] weeks          | \$1,000 - \$3,000              |
| Motel/emergency shelter             | \$60-\$120/night   | [TBD] nights         | \$1,000 - \$5,000              |
| Security deposits, application fees | Lump sum           | Multiple attempts    | \$1,000 - \$3,000              |
| <b>**Subtotal Housing**</b>         |                    |                      | <b>**\$12,600 - \$25,400**</b> |

**Ongoing:** Plaintiff continues to incur replacement housing costs. These damages accrue daily until Plaintiff is restored to equivalent housing or compensated.

## E. MOVING, STORAGE, AND EMERGENCY COSTS

| Item                                                     | Amount                       |
|----------------------------------------------------------|------------------------------|
| Emergency moving costs (what could be salvaged)          | \$500 - \$1,500              |
| Storage unit rental (if applicable)                      | \$500 - \$2,000              |
| Transportation costs (car as shelter)                    | \$1,000 - \$2,000            |
| Replacement necessities (emergency clothing, toiletries) | \$500 - \$1,000              |
| <b>**Subtotal Moving/Emergency**</b>                     | <b>**\$2,500 - \$6,500**</b> |

## F. LOT RENT OVERCHARGES AND UNAUTHORIZED FEES

| Item                                   | Period               | Monthly Overcharge           | Total                         |
|----------------------------------------|----------------------|------------------------------|-------------------------------|
| Unauthorized rent increase to \$695    | Dec 2023 - July 2025 | ~\$50-100/mo over prior rate | \$950 - \$1,900               |
| Unauthorized water/sewer charges       | Feb - Jun 2025       | \$120/mo without metering    | \$600                         |
| Misapplied payments (MDHHS, TrueNorth) | Various              | Full payment amounts         | \$1,000 - \$5,000             |
| Late fees on fraudulent balances       | Various              | \$25-\$50/mo                 | \$300 - \$600                 |
| Unauthorized misc. fees (from ledger)  | Various              | Varies                       | \$500 - \$2,000               |
| <b>**Subtotal Overcharges**</b>        |                      |                              | <b>**\$3,350 - \$10,100**</b> |

**Note:** The full scope of ledger fraud will be determined through discovery of complete, unredacted ledgers (Exhibit C).

## **TOTAL ACTUAL/DIRECT DAMAGES**

| Category                    | Low                  | High                 |
|-----------------------------|----------------------|----------------------|
| Property Value              | \$23,000             | \$70,000             |
| Lost Equity (Blocked Sales) | \$60,000             | \$105,000            |
| Personal Property           | \$10,000             | \$27,500             |
| Replacement Housing         | \$12,600             | \$25,400             |
| Moving/Emergency            | \$2,500              | \$6,500              |
| Overcharges/Fees            | \$3,350              | \$10,100             |
| <b>**TOTAL ACTUAL **</b>    | <b>**\$111,450**</b> | <b>**\$244,500**</b> |

## **III. CONSEQUENTIAL DAMAGES**

### **A. CUSTODY LOSS / DESTRUCTION OF PARENTAL RELATIONSHIP**

This is the single largest damage category. Defendants' eviction directly caused Plaintiff's homelessness, which was used as the basis to suspend parenting time with his minor son Lincoln.

#### **Per-Diem Calculation**

| Factor                               | Value                           |
|--------------------------------------|---------------------------------|
| Days of lost parenting time          | 571+ days (and counting)        |
| Per-diem value (Michigan precedent)  | \$175 - \$875/day               |
| <b>**Total lost parenting time**</b> | <b>**\$99,925 - \$499,625**</b> |

**Per-Diem Basis:**

- \* Michigan courts have recognized per-diem valuations for loss of parental consortium
- \* The value reflects not merely "babysitting cost" but the constitutionally protected fundamental liberty interest in the parent-child relationship (Troxel v. Granville, 530 U.S. 57 (2000))
- \* Low estimate: \$175/day (conservative, economic-only)
- \* Mid estimate: \$500/day (reflecting emotional and developmental value)
- \* High estimate: \$875/day (reflecting constitutional violation, ongoing harm)

**Child's Therapy and Counseling**

| Item                                | Estimated Cost                |
|-------------------------------------|-------------------------------|
| Child therapy/counseling (ongoing)  | \$5,000 - \$15,000            |
| Psychological evaluation            | \$2,000 - \$5,000             |
| Developmental assessment            | \$1,000 - \$3,000             |
| <b>**Subtotal Child Treatment**</b> | <b>**\$8,000 - \$23,000**</b> |

**Damage to Parent-Child Bond**

| Factor                                | Estimated Value                 |
|---------------------------------------|---------------------------------|
| Loss of developmental milestones      | \$10,000 - \$50,000             |
| Loss of daily relationship/guidance   | \$25,000 - \$100,000            |
| Potential permanent relationship harm | \$15,000 - \$100,000            |
| <b>**Subtotal Bond Damage**</b>       | <b>**\$50,000 - \$250,000**</b> |

**Future Legal Costs to Restore Custody**

| Item | Estimated Cost |
|------|----------------|
|------|----------------|

|                                         |                               |
|-----------------------------------------|-------------------------------|
| Attorney fees for custody modification  | \$5,000 - \$25,000            |
| Expert witness fees (custody evaluator) | \$3,000 - \$10,000            |
| Filing fees and court costs             | \$500 - \$2,000               |
| <b>**Subtotal Future Legal**</b>        | <b>**\$8,500 - \$37,000**</b> |

**TOTAL CUSTODY DAMAGES: \$166,425 - \$809,625**

## **B. EMPLOYMENT / INCOME LOSS**

| Item                                       | Basis                                           | Amount                         |
|--------------------------------------------|-------------------------------------------------|--------------------------------|
| Lost wages (homelessness-related job loss) | Est. 6 months at ~\$2,900/mo                    | \$17,500                       |
| Lost employment opportunities              | Inability to maintain employment while homeless | \$17,500 - \$35,000            |
| Credit damage impact on employment         | Background checks showing eviction              | \$5,000 - \$15,000             |
| <b>**Subtotal Employment**</b>             |                                                 | <b>**\$40,000 - \$67,500**</b> |

## **C. EMOTIONAL DISTRESS**

| Factor                                              | Amount                           |
|-----------------------------------------------------|----------------------------------|
| Distress from homelessness                          | \$15,000 - \$50,000              |
| Distress from loss of child contact (571+ days)     | \$50,000 - \$200,000             |
| Humiliation from set-out (public, with "FREE" sign) | \$10,000 - \$35,000              |
| Trauma from property destruction                    | \$5,000 - \$25,000               |
| Anxiety from ongoing housing instability            | \$5,000 - \$25,000               |
| Grief from separation from minor child              | \$25,000 - \$100,000             |
| <b>**Subtotal Emotional Distress**</b>              | <b>**\$110,000 - \$435,000**</b> |

## **D. PRO SE LITIGATION COSTS**

| Item             | Amount          |
|------------------|-----------------|
| Filing fees paid | \$500 - \$1,500 |

|                                                   |                                  |
|---------------------------------------------------|----------------------------------|
| Copying, postage, technology                      | \$500 - \$1,000                  |
| Research tools and resources                      | \$500 - \$1,000                  |
| Pro se hours (500+ hours x \$200/hr imputed rate) | \$100,000                        |
| <b>**Subtotal Litigation**</b>                    | <b>**\$101,500 - \$103,500**</b> |

**Authority:** Kay v. Ehrler, 499 U.S. 432 (1991) (pro se litigant fee recovery in civil rights cases); Roadway Express, Inc. v. Piper, 447 U.S. 752 (1980); 42 USC Sec. 1988.

## TOTAL CONSEQUENTIAL DAMAGES

| Category                       | Low                  | High                   |
|--------------------------------|----------------------|------------------------|
| Custody Loss                   | \$166,425            | \$809,625              |
| Employment/Income              | \$40,000             | \$67,500               |
| Emotional Distress             | \$110,000            | \$435,000              |
| Litigation Costs               | \$101,500            | \$103,500              |
| <b>**TOTAL CONSEQUENTIAL**</b> | <b>**\$417,925**</b> | <b>**\$1,415,625**</b> |

## IV. STATUTORY DAMAGES AND MULTIPLIERS

### A. RICO TREBLE DAMAGES (MCL 750.159J)

| Base           | Calculation           | Amount                           |
|----------------|-----------------------|----------------------------------|
| Actual Damages | \$111,450 - \$244,500 |                                  |
| x 3 (treble)   |                       | <b>**\$334,350 - \$733,500**</b> |

**Plus:** Costs of investigation, reasonable attorney fees, and court costs.

### B. CONVERSION TREBLE DAMAGES (MCL 600.2919A)



| Base                        | Calculation         | Amount                   |
|-----------------------------|---------------------|--------------------------|
| Personal Property Converted | \$10,000 - \$27,500 |                          |
| x 3 (treble)                |                     | ***\$30,000 - \$82,500** |

**Plus:** Costs and reasonable attorney fees.

**Note:** RICO treble damages and conversion treble damages apply to different categories and do not constitute impermissible double recovery.

### **C. MOBILE HOME COMMISSION ACT PENALTIES (MCL 125.2312I)**

| Violation                                 | Statutory Penalty      |
|-------------------------------------------|------------------------|
| Blocking sale of home (3 instances)       | \$5,000 x 3 = \$15,000 |
| Unauthorized rent increase                | \$5,000                |
| Failure to maintain habitability (sewage) | \$5,000                |
| Operating under dissolved entity          | \$5,000                |
| Unauthorized utility charges              | \$5,000                |
| Failure to properly account for payments  | \$5,000                |
| Interference with right to sell           | \$5,000                |
| <b>**Subtotal MHCA Penalties**</b>        | <b>**\$45,000**</b>    |

### **D. TRUTH IN RENTING ACT (MCL 554.636)**

| Item           | Amount                 |
|----------------|------------------------|
| Actual damages | Included in Section II |
| Attorney fees  | To be determined       |
| Costs          | To be determined       |

### **E. FAIR HOUSING ACT (42 USC 3613)**

| Item | Amount |
|------|--------|
|------|--------|

|                             |                                 |
|-----------------------------|---------------------------------|
| Per-violation penalty       | Up to \$16,000+ per violation   |
| Number of violations (est.) | 5-10 discriminatory acts        |
| <b>**Subtotal FHA**</b>     | <b>**\$80,000 - \$160,000**</b> |

## **F. WRONGFUL EVICTION (MCL 600.2918)**

| Item              | Amount                 |
|-------------------|------------------------|
| Statutory damages | \$5,000 - \$25,000     |
| Actual damages    | Included in Section II |

## **TOTAL STATUTORY DAMAGES**

| Category                   | Low                  | High                   |
|----------------------------|----------------------|------------------------|
| RICO Treble                | \$334,350            | \$733,500              |
| Conversion Treble          | \$30,000             | \$82,500               |
| MHCA Penalties             | \$45,000             | \$45,000               |
| FHA Penalties              | \$80,000             | \$160,000              |
| Wrongful Eviction          | \$5,000              | \$25,000               |
| <b>**TOTAL STATUTORY**</b> | <b>**\$494,350**</b> | <b>**\$1,046,000**</b> |

## **V. PUNITIVE / EXEMPLARY DAMAGES**

### **A. LEGAL STANDARD**

#### **State Farm v. Campbell, 538 U.S. 408 (2003):**

The Supreme Court established that punitive damages must bear a reasonable relationship to compensatory damages. While single-digit multipliers are generally appropriate, higher ratios may be warranted where:

- \* The conduct was particularly reprehensible

- \* The compensatory damages are modest relative to the harm
- \* The conduct was repeated and systematic rather than isolated

## B. REPREHENSIBILITY ANALYSIS (PER STATE FARM FACTORS)

| Factor                                            | Assessment                                                               | Score   |
|---------------------------------------------------|--------------------------------------------------------------------------|---------|
| Physical vs. economic harm                        | Both -- homelessness causes physical harm; destruction of property       | HIGH    |
| Indifference/reckless disregard for health/safety | Sewage exposure; homelessness with child                                 | HIGH    |
| Target's financial vulnerability                  | Pro se plaintiff, rendered homeless                                      | MAXIMUM |
| Repeated/isolated conduct                         | Systematic, multi-year pattern (ledger fraud, 3 blocked sales, eviction) | MAXIMUM |
| Intentional malice vs. accident                   | Deliberate scheme (text messages, ledger fraud, res judicata)            | MAXIMUM |

**Reprehensibility Score: MAXIMUM** -- All five State Farm factors weigh heavily in favor of substantial punitive damages.

## C. PER-DEFENDANT PUNITIVE ASSESSMENT

| Defendant               | Role                           | Ability to Pay           | Recommended Multiplier | Estimated Punitives        |
|-------------------------|--------------------------------|--------------------------|------------------------|----------------------------|
| Alden Global Capital    | Enterprise owner/director      | VERY HIGH (billions AUM) | 5x-9x                  | \$2,648,000 - \$14,940,000 |
| Partridge Equity Group  | Financial beneficiary          | HIGH                     | 5x-9x                  | \$2,648,000 - \$14,940,000 |
| Homes of America LLC    | Management company             | MODERATE-HIGH            | 3x-7x                  | \$1,588,000 - \$11,620,000 |
| Shady Oaks Park MHP LLC | Operating entity               | MODERATE                 | 3x-5x                  | \$1,588,000 - \$8,300,000  |
| Jeremy Brown            | Attorney -- res judicata fraud | MODERATE                 | 3x-5x                  | \$1,588,000 - \$8,300,000  |
| Aaron D. Cox            | Attorney -- dissolved entity   | MODERATE                 | 2x-3x                  | \$1,059,000 - \$4,980,000  |

|                 |                        |              |       |                           |
|-----------------|------------------------|--------------|-------|---------------------------|
| Henry Brandel   | Participant in set-out | LOW-MODERATE | 1x-3x | \$529,000 - \$4,980,000   |
| Park Manager(s) | Direct tortfeasor      | MODERATE     | 3x-5x | \$1,588,000 - \$8,300,000 |

**Note on Alden Global Capital/Partridge:** Discovery should be served to obtain financial statements, assets under management, and net worth. Alden Global Capital reportedly manages billions in assets. Punitive damages must be sufficient to deter future similar conduct by large institutional investors in manufactured housing communities.

## D. RESEARCH REQUEST -- NET WORTH DISCOVERY

To properly calibrate punitive damages, Plaintiff will need:

1. Alden Global Capital audited financial statements (3 years)
2. Partridge Equity Group financial statements (3 years)
3. Homes of America LLC financial statements
4. Shady Oaks entity financial records
5. SEC filings if applicable
6. Portfolio of manufactured housing communities managed

## VI. TOTAL DAMAGES SUMMARY

| Category                           | LOW ESTIMATE | HIGH ESTIMATE |
|------------------------------------|--------------|---------------|
| Actual/Direct Damages              | \$111,450    | \$244,500     |
| Consequential Damages              | \$417,925    | \$1,415,625   |
| Statutory Damages/Multipliers      | \$494,350    | \$1,046,000   |
| Punitive Damages (conservative 3x) | \$1,588,125  | \$4,980,375   |
| Punitive Damages (aggressive 9x)   | --           | \$14,940,000+ |

|                                |                 |                  |
|--------------------------------|-----------------|------------------|
| **GRAND TOTAL (Conservative)** | **\$2,611,850** | **\$7,686,500**  |
| **GRAND TOTAL (Aggressive)**   | **\$2,611,850** | **\$17,646,125** |

## PER-DEFENDANT ALLOCATION (PRELIMINARY)

| Defendant               | Joint & Several              | Individual Exposure                       |
|-------------------------|------------------------------|-------------------------------------------|
| Alden Global Capital    | Full amount                  | Largest share -- enterprise director      |
| Partridge Equity Group  | Full amount                  | Financial beneficiary of scheme           |
| Homes of America LLC    | Full amount                  | Management company implementing scheme    |
| Shady Oaks Park MHP LLC | Full amount                  | Operating entity                          |
| Shady Oaks MHP LLC      | Full amount (if resurrected) | Dissolved entity used in fraud            |
| Jeremy Brown            | Counts VI, XVIII, XXII       | Fraudulent res judicata                   |
| Aaron D. Cox            | Counts VI, XVII, XVIII       | Dissolved entity representation           |
| Henry Brandel           | Counts VII, VIII, XVIII      | Property conversion/trespass              |
| Park Manager(s)         | Full amount                  | Direct tortfeasor -- texts, blocked sales |

## VII. ONGOING DAMAGES (ACCRUING DAILY)

The following damages continue to accrue:

| Item                  | Daily Accrual     | Monthly Accrual       |
|-----------------------|-------------------|-----------------------|
| Replacement housing   | \$27 - \$40/day   | \$800 - \$1,200/mo    |
| Lost parenting time   | \$175 - \$875/day | \$5,250 - \$26,250/mo |
| Emotional distress    | Ongoing           | Ongoing               |
| Employment disruption | Ongoing           | Ongoing               |

**TOTAL DAILY ACCRUAL: \$200 - \$915+ per day**

Every day that passes without resolution increases Plaintiff's damages by hundreds of dollars.

## VIII. PREJUDGMENT INTEREST

Under MCL 600.6013, Plaintiff is entitled to prejudgment interest on all damages from the date each category of damage was incurred:

| Category              | Interest Rate    | From Date         |
|-----------------------|------------------|-------------------|
| Actual damages        | 5.000% per annum | Date of each loss |
| Consequential damages | 5.000% per annum | Date of each loss |
| Statutory damages     | 5.000% per annum | Date of filing    |

*Generated by LitigationOS -- Shady Oaks Damages Schedule*

*Case: Pigors v. Shady Oaks et al., Case No. 2025-002760-CZ*